

Amendment No. 1 to SB0577

Crowe
Signature of Sponsor

AMEND Senate Bill No. 577*

House Bill No. 1000

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, § 71-5-2003, is amended by adding the following as a new subsection:

(e) Notwithstanding this part, if the CMS determination, approvals, and confirmation set forth in subsection (b) have all been obtained except for the approval described in subdivision (b)(1)(B), then the assessment authorized by this section is implemented and imposed as set forth in this part.

SECTION 2. Tennessee Code Annotated, § 71-5-2005, is amended by adding the following as a new subsection (i):

(i) Notwithstanding this section, if the assessment authorized by this part is implemented pursuant to § 71-5-2003(e), then the expenditures for directed payments to hospitals set forth in subdivision (d)(2) must be limited to either the same amount authorized for FY 2024, as established in 2023 Public Chapter 232, or a greater amount as determined by the division in consultation with the Tennessee Hospital Association, up to the amount approved by CMS, until such time as the CMS determination, approvals, and confirmation outlined in § 71-5-2003(b) have been obtained and the division provides written notice to the Tennessee Hospital Association pursuant to § 71-5-2003(b).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.